MAY

INTERNATIONAL TRADE SERVICES LIMITED

REGULATORY ROADMAP & INVESTMENT ACTION PLAN™

Bangladesh IVF Clinic / Hospital Investment Project

Cayman – Hong Kong – Bangladesh Corporate Structure

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1. Executive Summary

May International Trade Services Limited ("May International") has been engaged to facilitate the registration, licensing, and regulatory pathway for a proposed IVF clinic investment in Dhaka, Bangladesh, structured through a Cayman Islands parent, a Hong Kong intermediate holding company (100% direct shareholder), and a wholly foreign-owned Bangladesh operating subsidiary.

This report has two purposes. First, it consolidates the outstanding clarifications required from the client before a definitive licensing roadmap and fee quotation can be issued — several of these concern the facility's clinical scope (Section C of the original questionnaire), which materially changes the licensing pathway. Second, it sets out the step-by-step regulatory roadmap for corporate formation, fiscal registration, healthcare-specific licensing, staffing/immigration, and equipment import, based on the current framework administered by BIDA, RJSC, NBR, DGHS, DGDA, and BMDC.

Bangladesh does not currently have a dedicated statute governing assisted reproductive technology (ART) clinics, embryology laboratories, or gamete/embryo cryopreservation banks — unlike some other jurisdictions in the region. In the absence of ART-specific legislation, an IVF facility is licensed and inspected by the Directorate General of Health Services (DGHS) under the general private clinic/diagnostic-centre framework, with pharmacy and medical-device components regulated separately by the Directorate General of Drug Administration (DGDA). This is an important structural point: it means the project's licensing burden is shaped by how the facility is described and scoped at the outset, since Bangladesh has no ready-made "IVF clinic" license category.

A realistic timeline from incorporation to full operational licensing is estimated at 9 to 14 months, driven primarily by the DGHS facility-licensing stage, which has historically been the slowest and least predictable step in the process (industry sources report multi-month to multi-year delays under the current system, with reform efforts announced but not yet fully implemented as of this report's preparation). Given the client's stated ambition of an H2 2026 launch, this timeline should be treated as an active risk to be managed and communicated, not assumed away.

2. Outstanding Clarifications Required From Client

The following items are drawn from the client's responses to May International's initial information request. They are organized to mirror the original questionnaire structure and represent the specific gaps that must be resolved before the regulatory roadmap in Section 4 can be finalized into a firm timeline and fee quotation.

A. Capital & Currency

1. The Authorized and Paid-up Capital were provided as 20 million RMB. Please confirm the currency of actual inward remittance (USD is standard for Bangladesh Bank encashment purposes) and provide the intended RMB-to-USD conversion basis, since Bangladeshi company records and BIDA filings must be denominated in BDT/USD.
2. Please confirm whether the full 20 million RMB equivalent will be remitted at incorporation, or whether capital will be injected in tranches.

B. Facility Scope (Section C)

3. Please confirm, item by item, whether the facility will include: (i) an Embryology Laboratory, (ii) Embryo/Egg/Sperm Cryopreservation facilities, (iii) an Operation Theatre, (iv) an in-house Diagnostic Laboratory, and (v) an in-house Pharmacy. Each of these triggers a distinct DGHS/DGDA licensing track, and the licensing roadmap and quotation cannot be finalized while this section remains open.
4. If a Cryopreservation facility (an ART bank function) is planned, please confirm intended storage duration policy and any third-party gamete/embryo bank arrangements, since Bangladesh does not currently have a

dedicated ART-specific statute (unlike, for example, India's Assisted Reproductive Technology (Regulation) Act, 2021) and such services will be assessed by DGHS under general clinic/diagnostic-centre rules.

C. Clinic vs. Hospital Classification

5. Section B confirms an IVF Clinic, but Section C leaves the proposed bed count as 'TBD.' Please confirm definitively whether any inpatient beds are planned. Any inpatient capacity will reclassify the facility as a hospital/diagnostic-center for DGHS licensing purposes, which carries materially heavier infrastructure, staffing-ratio, and inspection requirements than a clinic license.

D. Revenue & Corporate Model

6. The response to Section I states that 'clinics generate profits while the medical company undertakes daily operations.' Please clarify whether this describes a single Bangladesh entity providing both clinical services and equipment/consumables handling, or two separate entities (e.g., a clinic license-holder and a separate operating/import company). This affects VAT treatment, since medical services are generally VAT-exempt in Bangladesh while equipment trading and imports are not.

E. Foreign Staffing & Licensing

7. Please confirm the specific nationalities of the foreign doctors and embryologists to be engaged, as BMDC's registration route (qualifying examination vs. recognized-equivalency pathway) and the corresponding timeline vary by the issuing country of the medical degree.
8. Please confirm anticipated headcount ranges for foreign vs. local staff, even as estimates, to allow assessment against the BIDA foreign-employee ratio caps (5% for industrial classification, 20% for commercial classification).

F. Site & Timeline

9. Please confirm the target city/area within Dhaka (or elsewhere) so that premises sourcing and zoning checks can begin; and confirm whether leased or owned premises are preferred.
10. Please confirm target dates for company incorporation, facility fit-out completion, and commencement of operations (Section 26 was left blank). Given that DGHS clinic/diagnostic-centre licensing has historically taken several months to multiple years in practice (though reform to shorten this is currently under DGHS consideration), the stated H2 2026 launch window should be stress-tested against the facility-scope decision in item B above.

G. Equipment & Imports

11. Please provide a preliminary itemized equipment list (even indicative) with countries of origin, as 'Southeast Asian countries' and 'professional equipment' are too general for DGDA medical-device classification, HS-code tariff assessment, or capital-machinery duty-concession planning.
12. Please confirm which specific consumables, reagents, or medicines will be imported directly by the Bangladesh entity versus sourced locally, so DGDA import-licensing scope can be finalized.

3. Corporate Structure Overview & Implications

3.1 Proposed Structure

The proposed structure is a three-tier holding chain: a Cayman Islands ultimate parent, a Hong Kong intermediate holding company acting as the 100% direct shareholder of the Bangladesh operating company, with both offshore entities ultimately controlled by foreign natural persons. This is a conventional structure for inbound Bangladeshi FDI and is consistent with the wholly foreign-owned subsidiary route (as opposed to a joint venture), which remains permitted for the healthcare sector under Bangladesh's Foreign Private Investment (Promotion & Protection) Act, 1980 and the BIDA Act, 2016.

3.2 Regulatory Touchpoints of the Structure

- BIDA registration and RJSC incorporation will name the Hong Kong entity as the direct shareholder of record; the Cayman parent will not appear directly on Bangladesh corporate filings unless structured otherwise.
- Capital remittance for the paid-up capital should flow from the Hong Kong entity's bank account into the Bangladesh company's temporary capital account, and the encashment certificate will reference that remitting entity.
- Profit repatriation (dividends) from Bangladesh will flow to the Hong Kong shareholder, subject to Bangladesh Bank approval under the Foreign Exchange Regulation Act, 1947; onward repatriation from Hong Kong to Cayman is outside Bangladesh's regulatory scope but should be reviewed by the client's international tax counsel.
- Because minimum capital for foreign-owned entities is assessed in USD-equivalent terms (a commonly cited practical threshold is USD 50,000 for the initial establishment/encashment certificate), the RMB-denominated capital figures provided should be converted and confirmed before filing.

4. Step-by-Step Regulatory Roadmap

The roadmap below sequences the required registrations and licenses from pre-incorporation through commencement of operations. Timeframes are indicative, based on officially stated processing targets combined with current market practice, and should be treated as planning estimates rather than guarantees — particularly for the DGHS licensing stage in Phase 4, which is the primary source of schedule risk for this project.

Phase 0 — Pre-Incorporation Preparation

Indicative timeframe: Weeks 1–3

Action Item	Responsible Authority / Party
Finalize shareholding structure & capital remittance currency (RMB→USD/BDT conversion)	Client / May International
Reserve company name with RJSC via BIDA OSS (foreign entity fee ~BDT 230 incl. VAT)	RJSC / BIDA OSS
Open temporary bank account in Bangladesh for capital deposit	Bangladesh Bank-scheduled AD Bank
Draft Memorandum & Articles of Association reflecting Cayman–Hong Kong–Bangladesh structure	Legal Counsel

Phase 1 — Capital Remittance & Corporate Incorporation

Indicative timeframe: Weeks 3–8

Action Item	Responsible Authority / Party
Remit paid-up capital (min. equivalent of USD 50,000 for wholly foreign-owned entity) and obtain encashment certificate	AD Bank

Action Item	Responsible Authority / Party
Incorporate as private limited company; obtain Certificate of Incorporation and Certificate of Commencement	RJSC & F
File Form-X / Form-XII / Form-XV confirming authorized/paid-up capital and shareholding	RJSC & F
Submit BIDA registration application with corporate dossier, business plan, and financial projections	BIDA (OSS)
Notify Bangladesh Bank of inbound equity under Section 18B, Foreign Exchange Regulation Act 1947 (within 30 days of BIDA approval)	Bangladesh Bank

Phase 2 — Fiscal & Trade Registration

Indicative timeframe: Weeks 6–10 (parallel to Phase 1)

Action Item	Responsible Authority / Party
Obtain Tax Identification Number (TIN/e-TIN)	National Board of Revenue (NBR)
Obtain VAT registration / Business Identification Number (E-BIN)	NBR
Obtain Trade License from local City Corporation / Union Parishad	Dhaka North/South City Corporation
Apply for Import Registration Certificate (IRC) for capital machinery, routed through BIDA to CCI&E	CCI&E via BIDA

Phase 3 — Premises & Facility Compliance

Indicative timeframe: Weeks 8–20 (site-dependent)

Action Item	Responsible Authority / Party
Identify and lease/acquire premises; confirm zoning suitability for a medical facility	Client, with May International site-sourcing support
Obtain Fire Service & Civil Defense (FSCD) clearance	Fire Service & Civil Defense Directorate
Obtain Environmental Clearance Certificate	Department of Environment (DoE)
Confirm structural/building compliance with the Bangladesh National Building Code (BNBC), particularly if beds or an OT are included	Local Authority / Engineering Consultant

Phase 4 — Healthcare-Specific Licensing

Indicative timeframe: Months 3–9 (highly variable)

Action Item	Responsible Authority / Party
Apply for Private Clinic/Diagnostic Centre license through the DGHS online licensing portal, specifying embryology lab, OT, cryopreservation and diagnostic lab scope	DGHS (Hospital & Clinic Section)

Action Item	Responsible Authority / Party
Apply for in-house Pharmacy Drug License (if operating an in-house pharmacy)	Directorate General of Drug Administration (DGDA)
Apply for Diagnostic Laboratory registration (separate from the clinic license where lab services are offered)	DGHS
Register imported IVF/embryology equipment as medical devices (Class B/C/D per ASEAN MDD classification) through the two-step DGDA Market Authorization process	DGDA

Phase 5 — Staffing, Registration & Immigration

Indicative timeframe: Months 3–7 (parallel)

Action Item	Responsible Authority / Party
Confirm BMDC registration route for each foreign specialist by nationality (qualifying exam vs. recognized-equivalency track)	Bangladesh Medical & Dental Council (BMDC)
Publish local recruitment advertisement (where required) prior to filing foreign hiring justification	Employer
Apply for BIDA E-Visa Recommendation Letter for each foreign employee	BIDA (OSS)
Foreign staff obtain E-Visa at Bangladesh Mission abroad; enter Bangladesh under E-visa category	Bangladesh Embassy/High Commission
File Work Permit application with BIDA within 15 days of arrival; await Ministry of Home Affairs security clearance	BIDA / Ministry of Home Affairs

Phase 6 — Equipment Import & Final Pre-Launch Compliance

Indicative timeframe: Months 6–10

Action Item	Responsible Authority / Party
Finalize itemized equipment list with HS codes for customs and duty-concession assessment	Client / Customs Broker
Clear capital machinery through customs against IRC / Import Permit; retain Bills of Entry	Chittagong/Dhaka Customs
Apply for DPDT trademark registration to protect brand name and clinic identity	Department of Patents, Designs & Trademarks (DPDT)
Compile consolidated compliance file (all licenses, permits, tax certificates) ahead of DGHS pre-launch inspection	May International / Legal Counsel

Phase 7 — Commencement of Operations

Indicative timeframe: Target: per confirmed launch date

Action Item	Responsible Authority / Party
DGHS pre-operational inspection and license issuance	DGHS
Soft launch / clinical dry-run with credentialed staff	Client
Full commercial commencement and first patient intake	Client

5. Consolidated Timeline Summary

The table below presents a consolidated best-case-to-likely-case view across all phases. Phases 1–3 and Phases 4–5 run substantially in parallel, so the overall runway is not a simple sum of each phase's duration.

Milestone	Best-Case Timing	Likely-Case Timing
Company incorporation (RJSC + BIDA)	6–8 weeks	8–12 weeks
Fiscal registration (TIN/VAT/Trade License)	2–4 weeks (parallel)	4–6 weeks
Premises secured & fit-out compliance (Fire/Environment)	8–12 weeks	12–20 weeks
DGHS facility license issued	3–6 months	6–14 months
DGDA pharmacy & medical-device registrations	3–4 months	4–6 months
Foreign staff BMDC registration + work permits	2–4 months	3–7 months
Equipment import & customs clearance	1–2 months (post-approval)	2–3 months
Full commencement of operations	~9 months from kickoff	~14 months from kickoff

6. Risk Flags & Regulatory Considerations

6.1 No Bangladesh-Specific ART Statute

Bangladesh currently regulates IVF/ART clinics under the general DGHS private clinic and diagnostic-centre licensing regime, rather than a dedicated Assisted Reproductive Technology statute. This is a structural gap relative to some regional peers. The absence of ART-specific rules cuts both ways: it means there is no bespoke ART license category to navigate, but it also means embryology, cryopreservation, and any future consideration of gamete donation or surrogacy-adjacent services fall into a regulatory grey zone that could attract new legislation with limited grandfathering. May International recommends scoping the facility conservatively (clinical IVF/ICSI/IUI services) and monitoring for any future ART-specific bill.

6.2 DGHS Licensing Backlog and Reform in Progress

Industry reporting from late 2025 indicates that a large share of private hospitals, clinics, and diagnostic centres operating in Bangladesh are not current on registration, and that the licensing and renewal process has historically involved review by multiple disconnected agencies (DGHS, Department of Environment, Fire Service, NBR, local trade-license authorities), each with independent timelines. DGHS has proposed a single-window system and longer license validity periods, but as of this report's preparation these reforms had not yet been formally implemented. This is the single largest source of schedule risk to the project's H2 2026 launch target.

6.3 Currency and Capital Documentation

RMB-denominated capital figures will need conversion and re-confirmation in USD/BDT terms for BIDA, RJSC, and Bangladesh Bank filings. Any mismatch between the currency of the remitting entity (Hong Kong) and the stated capital figures should be resolved before the BIDA application is filed, to avoid delays at the encashment-certificate stage.

6.4 Foreign Staffing Documentation

BMDC's registration pathway for foreign-trained doctors depends on the issuing country of the medical degree and whether the individual is a Bangladeshi national trained abroad or a foreign national. Given that recruitment is planned across multiple Southeast Asian countries, May International recommends a country-by-country BMDC pre-clearance check before finalizing offer letters, since this can materially affect the work-permit timeline in Phase 5.

6.5 Equipment Classification

Embryology and IVF laboratory equipment (incubators, ICSI workstations, cryopreservation tanks) will likely fall into DGDA's higher-risk device classes (Class B–D), which require ISO 13485 certification and a Certificate of Free Sale from a recognized reference country, and take an estimated four to six months to register. This should be initiated as early as possible and run in parallel with facility licensing rather than sequentially after it.

7. Sources

This report draws on publicly available regulatory guidance current as of July 2026. Given the pace of reform in Bangladesh's investment and healthcare-licensing framework, all timelines and fee levels should be reconfirmed directly with BIDA, DGHS, and DGDA immediately prior to filing.

- Bangladesh Investment Development Authority (BIDA) — Official Portal & FAQ, https://bida.gov.bd/ and https://bida.gov.bd/faq
- BIDA — Foreign & Joint Venture Investment Guidance, https://investbangladesh.gov.bd/foreign-joint-venture-projects
- Directorate General of Health Services (DGHS) — Hospital & Clinic Section, https://hospitaldghs.gov.bd/
- The Business Standard — "Govt moves to simplify licensing process for private hospitals and clinics," 29 October 2025, https://www.tbsnews.net/supplement/govt-moves-simplify-licensing-process-private-hospitals-and-clinics-1271866
- The Business Standard — "Foreign firms now require Bida registration for govt projects," https://www.tbsnews.net/economy/foreign-firms-now-require-bida-registration-govt-projects-1108726
- Directorate General of Drug Administration (DGDA) — Official Portal & FAQ, https://dgda.gov.bd/ and http://www.dgdagov.info/index.php/faq
- Asia Actual — Bangladesh Medical Device Registration and Approval (Drug and Cosmetics Act, 2023), https://asiaactual.com/bangladesh/medical-device-registration/
- ElendiLabs — Bangladesh Medical Device Registration: Two-Step DGDA Approval and Validity, https://www.elendilabs.com/en/articles/bgd-md-registration
- Segunbagicha Consultancy — Drug License in Bangladesh: Step-by-Step Guide, https://segunbagicha.com/service/drug-license/
- Bangladesh Medical & Dental Council (BMDC) — Official Portal & Foreign Registration Forms, https://www.bmdc.org.bd/ and https://www.bmdc.org.bd/forms-foreign

- OGR Legal Resource Portal — Obtaining a Work Permit in Bangladesh for Foreign Nationals from BIDA, https://resource.ogrlegal.com/foreign-investment/work-permit/e-visa-work-permit/
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- FM Associates — How to Setup Healthcare Business in Bangladesh, https://www.fmassociatesbd.com/doing-business/how-to-setup-healthcare-business-in-bangladesh-doing-business-in-bangladesh
- Indian Journal of Community Medicine — Jamwal VD, Yadav AK, "The Assisted Reproductive Technology (Regulation) Act, 2021: A Step in the Right Direction," 2023;48(1):4-6 (cited for comparative regulatory context; this Act applies in India, not Bangladesh).

Document Control

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